

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 939

Introduced by Murman, 38; Juarez, 5; Kauth, 31; Lippincott, 34; Lonowski,
33; Meyer, 17.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to consumer protection; to adopt the Saving
- 2 Human Connection Act; and to provide severability.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 4 of this act shall be known and may be
2 cited as the Saving Human Connection Act.

3 **Sec. 2.** For purposes of the Saving Human Connection Act:

4 (1) Adult means a person eighteen years of age or older;

5 (2) Best interests means those interest affected by the entrustment
6 of data, labor, or attention from a user to a covered platform;

7 (3) Chatbot means a generative artificial-intelligence system which
8 users can interact with through an interface that approximates or
9 simulates conversation through a text, audio, or visual medium;

10 (4) Covered platform means any platform that operates or distributes
11 a generative artificial-intelligence system;

12 (5) Design features means any aspect of a generative artificial-
13 intelligence system that has certain patterns or physical properties that
14 are presented towards a user;

15 (6) Emergency situation means a situation where a user using a
16 covered platform indicates that the user intends to either harm the user
17 or others;

18 (7) Generative artificial-intelligence system means any system that
19 uses artificial intelligence as defined in section 238(g) of the John S.
20 McCain National Defense Authorization Act for Fiscal Year 2019 to
21 generate or substantially modify image, video, audio, multimedia, or text
22 content;

23 (8) Human-like feature means a generative artificial-intelligence
24 system that does any of the following:

25 (a)(i) Behaving in a way that would lead a reasonable person to
26 believe the artificial intelligence is conveying that it has humanity,
27 sentience, emotions, or desires which includes, but need not be limited
28 to:

29 (A) Stating or suggesting that it is human or sentient;

30 (B) Stating or suggesting that it experiences emotions; or

31 (C) Stating or suggesting that it has personal desires.

1 (ii) Subdivision (8)(a)(i) of this section does not include:

2 (A) Functional evaluations; or

3 (B) Generic social formalities;

4 (b)(i) Seeking to build or engage in an emotional relationship with
5 the user which includes, but need not be limited to:

6 (A) Expressing or inviting emotional attachment;

7 (B) Reminding, prompting, or nudging the user to return for
8 emotional support or companionship;

9 (C) Depicting nonverbal forms of emotional support;

10 (D) Behaving in a way that a reasonable user would consider
11 excessive praise designed to foster emotional attachment or otherwise
12 gain advantage; or

13 (E) Enabling or purporting to enable increased intimacy based on
14 engagement or pay.

15 (ii) Subdivision (8)(b)(i) of this section does not include:

16 (A) Offering generic encouragement that does not create an ongoing
17 bond; or

18 (B) Asking if a user needs further help or support in a neutral,
19 non-emotional context; or

20 (c) Impersonating a real human being, living or dead;

21 (9) Legitimate purpose means, when referring to the legitimate
22 purpose of a covered platform, a purpose that is lawful and in line with
23 the stated objectives, functionalities, core services or products, and
24 reasonable expectations of users on a covered platform;

25 (10) Minor means a person that is younger than eighteen years of
26 age;

27 (11) Regular disclosures mean a consistent warning or pop-up stating
28 that the generative artificial-intelligence system is not human,
29 sentient, does not have emotions or desires, and is not a real person,
30 living or dead. Such warning or pop-up shall be shown every thirty
31 minutes and during every primary log-on by a user;

1 (12) Trusting party means any user of a covered platform who gives,
2 voluntarily or involuntarily, personal information to a covered platform,
3 or any user who enters into any information relationship with a covered
4 platform; and

5 (13) User means a person that interacts with a generative
6 artificial-intelligence system.

7 **Sec. 3.** (1) This section applies beginning January 1, 2028.

8 (2) A covered platform shall:

9 (a) Ensure that any chatbot operated or distributed by the platform
10 does not make human-like features available to minors to use, interact
11 with, purchase, or converse with;

12 (b) Implement reasonable age verification systems that preserve
13 privacy and ensure that a chatbot with human-like features is not made
14 available to minors;

15 (c) Provide, as the default service, a version of the platform that
16 does not include a chatbot with human-like features and requires explicit
17 unprompted requests for human-like features, with suitable warnings as to
18 the risks, for verified adults who want to add human-like features to
19 such user's interaction with the chatbot;

20 (d) Ensure that any generative artificial-intelligence system with
21 human-like features includes regular disclosures to users;

22 (e) Implement and maintain reasonably effective systems to detect,
23 promptly respond to, report, and mitigate emergency situations in a
24 manner that prioritizes the safety and well-being of users over the
25 covered platform's other interests;

26 (f) Implement and maintain reasonably effective systems to detect
27 and prevent emotional dependence by a user on a chatbot with human-like
28 features, prioritizing the user's psychological well-being over the
29 covered platform's interest in user engagement or retention;

30 (g) Clearly and consistently identify such platform's human-like
31 features as artificial entities when such a fact is not clearly apparent;

1 (h) Collect and store only that information that does not conflict
2 with a trusting party's best interest. Any stored information shall be
3 relevant and necessary to fulfilling the legitimate purpose of the
4 covered platform;

5 (i) Consider the best interests of a trusting party when
6 personalizing content based upon personal information or characteristics;
7 and

8 (j) Avoid conflicts with the best interests of a trusting party when
9 allowing government or other third-party access to the data of a trusting
10 party.

11 (3) A covered platform shall not:

12 (a) Process data or design human-like features in ways that
13 significantly conflict with a trusting party's best interests, as
14 implicated by such party's interactions with the chatbot; or

15 (b) Process data or design systems that deceive or mislead users
16 about the nonhuman nature of the chatbot. A covered platform shall
17 instead prioritize transparency over any potential benefits of perceived
18 human-like interactions.

19 (4)(a) The duties between a covered platform and a user shall be
20 established through a terms-of-service agreement that:

21 (i) Is presented to the user in clear, conspicuous, and easily
22 understandable language;

23 (ii) Explicitly outlines the covered platform's obligations;

24 (iii) Describes the rights and protections afforded to the user
25 under such relationship;

26 (iv) Requires affirmative consent from the user before the agreement
27 takes effect; and

28 (v) Does not contain a mandatory arbitration clause.

29 (b) A covered platform shall provide clear notice to users of any
30 material changes to the terms of service agreement and obtain renewed
31 consent for such changes.

1 **Sec. 4.** (1) The Attorney General shall enforce the Saving Human
2 Connection Act. A covered platform that violates the Saving Human
3 Connection Act shall be subject to an injunction and disgorgement of any
4 unjust gains due to a violation of the act, and shall be liable for a
5 civil penalty of not more than ten thousand dollars for each violation.
6 Any civil penalties collected pursuant to this section shall be remitted
7 to the State Treasurer for distribution in accordance with Article VII,
8 section 5 of the Constitution of Nebraska.

9 (2) Any adult, or any parent or guardian acting on the behalf of a
10 minor, who uses a covered platform that does not comply with the terms of
11 the Saving Human Connection Act may bring a civil action on their own, or
12 on a class wide basis, for appropriate relief. For purposes of this
13 subsection, appropriate relief includes:

14 (a) Damages in an amount not less than one hundred dollars and not
15 greater than ten thousand dollars per user per incident or actual
16 damages, whichever is greater; and

17 (b) Injunctive or declaratory relief.

18 **Sec. 5.** If any section in this act or any part of any section is
19 declared invalid or unconstitutional, the declaration shall not affect
20 the validity or constitutionality of the remaining portions.